

IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 25th TH DAY OF JULY, 2014

BEFORE:

THE HON'BLE MR. JUSTICE K.N. PHANEENDRA

CRL. P. NO. 100319/2014

C/W.

CRL. P. NO. 100326/2014, CRL. P. NO. 100335/2014,
CRL. P. NO. 100336/2014, CRL. P. NO. 100353/2014,
CRL. P. NO. 100357/2014, CRL. P. NO. 100358/2014,
CRL. P. NO. 100377/2014, CRL. P. NO. 100380/2014,
CRL. P. NO. 100404/2014, CRL. P. NO. 100405/2014,
CRL. P. NO. 100423/2014, CRL. P. NO. 100454/2014,
CRL. P. NO. 100480/2014, CRL. P. NO. 100481/2014,
CRL. P. NO. 100482/2014, CRL. P. NO. 100483/2014,
CRL. P. NO. 100484/2014, CRL. P. NO. 100485/2014,
CRL. P. NO. 100500/2014, CRL. P. NO. 100507/2014,
CRL. P. NO. 100510/2014, CRL. P. NO. 100511/2014,
CRL. P. NO. 100530/2014, CRL. P. NO. 100531/2014,
CRL. P. NO. 100532/2014, CRL. P. NO. 100533/2014,
CRL. P. NO. 100536/2014, CRL. P. NO. 100567/2014,
CRL. P. NO. 100568/2014, CRL. P. NO. 100443/2014,
CRL. P. NO. 100444/2014, CRL. P. NO. 100445/2014,
CRL. P. NO. 100446/2014, CRL. P. NO. 100447/2014,
CRL. P. NO. 100448/2014, CRL. P. NO. 100449/2014,
CRL. P. NO. 100456/2014, CRL. P. NO. 100457/2014,
CRL. P. NO. 100458/2014, CRL. P. NO. 100459/2014,
CRL. P. NO. 100460/2014 & CRL. P. NO. 100891/2014
(TOTALLY 43 MATTERS)

IN CRL.P. NO. 100319/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. PRAYING THIS HON'BLE COURT BE PLEASED TO SET ASIDE THE ORDER DATED 12.04.2010 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963 IN C.C. NO. 365/2010 ON THE FILE OF II ADDITIONAL CIVIL JUDGE (JR. DVN.) & J.M.F.C., BELLARY AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100326/2014:
BETWEEN:

MOIN BASHA KURNOOLI
 S/O LATE HAJI ABDUL GAFOOR,
 AGED ABOUT 42 YEARS,
 R/O. D. NO.19, W.NO. 28,
 MORE GALLI, COWL BAZAAR,
 BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
 BY COWL BAZAAR POLICE STATION,
 BELLARY, REPRESENTED BY
 PUBLIC PROSECUTOR,
 HIGH COURT OF KARNATAKA,
 BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. PRAYING TO SET ASIDE THE ORDER DATED 22.2.2013 THE STATE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963 IN C.C. NO. 433/2010 ON THE FILE OF II ADDITIONAL CIVIL JUDGE (JR. DVN.) & J.M.F.C., BELLARY AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100335/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 29.01.2013 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.486/2010 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100336/2014:
BETWEEN:

MOIN BASHA KURNOOLI
 S/O LATE HAJI ABDUL GAFOOR,
 AGED ABOUT 42 YEARS,
 R/O. D. NO.19, W.NO. 28,
 MORE GALLI, COWL BAZAAR,
 BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
 BY COWL BAZAAR POLICE STATION,
 BELLARY, REPRESENTED BY
 PUBLIC PROSECUTOR,
 HIGH COURT OF KARNATAKA,
 BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 17.09.2011 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.491/2011 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100353/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 24.02.2012 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER DATED 18.06.2012 SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.168/2012 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100357/2014:
BETWEEN:

MOIN BASHA KURNOOLI
 S/O LATE HAJI ABDUL GAFOOR,
 AGED ABOUT 42 YEARS,
 R/O. D. NO.19, W.NO. 28,
 MORE GALLI, COWL BAZAAR,
 BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIEMATH, ADV.)

AND

THE STATE OF KARNATAKA,
 BY COWL BAZAAR POLICE STATION,
 BELLARY, REPRESENTED BY
 PUBLIC PROSECUTOR,
 HIGH COURT OF KARNATAKA,
 BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 01.03.2013 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.119/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100358/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET-ASIDE THE ORDER DATED 29.08.2013 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963 IN C.C.NO.638/2013 ON THE FILE OF II ADDITIONAL CIVIL JUDGE (JR.DN.) & J.M.F.C. BELLARY AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100377/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.V. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 21.04.2014 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.879/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100380/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI. SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 21.04.2014 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.878/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100404/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 09.12.2013 THE STAGE REGISTERING THE CRIMINAL CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.932/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100405/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 9.12.2013 THE STATE REGISTERING THE CRIMINAL CASE WITHOUT TAKING COGNANCE AND WITHOUT ISSUING SUMMONS AGAINST THE PETITIONER FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.1035/2011 ON THE FILE OF THE II-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100423/2014:

BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIEMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 24.01.2014 THE STAGE WITHOUT ORDER REGISTERING THE CRIMINAL CASE AND WITHOUT TAKING COGNIZANCE OF THE CASE AND DIRECT ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963 IN C.C.NO.74/2014 ON THE FILE OF THE I-ADDL. CIVIL JUDGE (JR.DN.) & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100454/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO SET ASIDE THE ORDER DATED 10.11.2011 THE STAGE REGISTERING THE CRIMINAL CASE WITHOUT TAKING COGNIZANCE OF THE CASE AND ALSO ORDER SUMMONING THE PETITIONER BEFORE THE COURT IN THE INSTANT CASE FOR THE ALLEGED OFFENCE PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963, IN C.C.NO.1030/2011 ON THE FILE OF THE I-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AND TO QUASH THE CRIMINAL PROCEEDINGS INSTITUTED AGAINST THE PETITIONER.

IN CRL.P. NO. 100480/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER
SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR
DATED 16.01.2012 REGISTERED IN CR.NO.15/2012 BY
THE COWL BAZAR POLICE STATION, BELLARY AND
SUBSEQUENT CRIMINAL PROCEEDINGS IN
C.C.NO.502/2012 ON THE FILE OF THE II-ADDL. CIVIL
JUDGE & JMFC COURT, BELLARY, AGAINST THE
PETITIONER.

IN CRL.P. NO. 100481/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION
482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED
13.01.2012 REGISTERED IN CR.NO.13/2012 BY THE COWL
BAZAR POLICE STATION, BELLARY AND SUBSEQUENT
CRIMINAL PROCEEDINGS IN C.C.NO.478/2012 ON THE
FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT,
BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100482/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 08.07.2013 REGISTERED IN CR.NO.257/2013 BY THE COWL BAZAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.637/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100483/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY BRUCEPET POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 16.02.2011 REGISTERED IN CR.NO.30/2011 BY THE BRUCEPET POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.348/2011 ON THE FILE OF THE I-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100484/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY BRUCEPET POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 30.12.2012 REGISTERED IN CR.NO.302/2012 BY THE BRUCEPET POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.291/2013 ON THE FILE OF THE I-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100485/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY BRUCEPET POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 17.10.2013 REGISTERED IN CR.NO.285/2013 BY THE BRUCEPET POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1161/2013 ON THE FILE OF THE I-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100500/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY APMC YARD POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 07.10.2013 REGISTERED IN CR.NO.73/2013 BY THE APMC YARD POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1076/2013 ON THE FILE OF THE I-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100507/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION NO.100507/2014 IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 10.01.2012 REGISTERED IN CR.NO.11/2012 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1036/2012 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100510/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 02.01.2012 REGISTERED IN CR.NO.2/2012 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1066/2012 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100511/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 28.08.2013 REGISTERED IN CR.NO.260/2013 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1576/2013 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

IN CRL.P. NO. 100530/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY RURAL POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 18.07.2013 REGISTERED IN CR.NO.204/2013 BY THE RURAL POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.841/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100531/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 13.08.2013 REGISTERED IN CR.NO.232/2013 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1699/2013 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100532/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 02.01.2012 REGISTERED IN CR.NO.3/2012 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1067/2012 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100533/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 28.11.2013 REGISTERED IN CR.NO.412/2013 BY THE COWL BAZAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.61/2014 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100536/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 23.08.2012 REGISTERED IN CR.NO.244/2012 BY THE COWL BAZAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.116/2013 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100567/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 03.04.2012 REGISTERED IN CR.NO.102/2012 BY THE COWL BAZAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.713/2012 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100568/2014:
BETWEEN:

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O. D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

... PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY GANDHINAGAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 17.08.2011 REGISTERED IN CR.NO.163/2011 BY THE GANDHINAGAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.1014/2011 ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST PETITIONER.

IN CRL.P. NO. 100443/2014:
BETWEEN:

PAN VALI,
AGED ABOUT 51 YEARS,
OCC: BUSINESS
R/O. BEHIND RAMA TALKIS
S.R. NAGAR, HOSPET,
BELLARY.

... PETITIONER

(BY SRI.V.M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA,
PSI EXTENSION POLICE STATION,
HOSPET, REPRESENTED BY
SPP, HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1352/2012 (CRIME NO.16/2012) PENDING ON THE FILE OF THE ADDL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100444/2014:
BETWEEN

PAN VALI
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: BEHIND RAMA TALKIES,
S.R.NAGAR, HOSPET,
DIST: BELLARY. ... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI T.B.DAM POLICE STATION,
BELLARY, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD. ... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1237/2013 (CRIME NO.31/2012) PENDING ON THE FILE OF THE ADDL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100445/2014:
BETWEEN

PAANVALI
S/O.LATE KHAJAHUSSAIN,
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: S.R.NAGAR,
HOSPET, DIST: BELLARY. ... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION,
HOSPET, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD. ... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.900/2012 (CRIME NO.46/2011) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100446/2014:
BETWEEN

PAN VALI
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: S.R.NAGAR,
HOSPET, DIST: BELLARY.

... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION,
HOSPET, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.259/2013 (CRIME NO.200/2011) PENDING ON THE FILE OF THE PRL. SENIOR CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100447/2014:
BETWEEN

PAN VALI
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: S.R.NAGAR,
HOSPET, DIST: BELLARY.

... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI EXTENSION POLICE STATION,
HOSPET, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.809/2011 (CRIME NO.02/2011) PENDING ON THE FILE OF THE ADDL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100448/2014:
BETWEEN

PAN VALI @ VALI @ SHABSHVALI
S/O. LATE. KHAJAHUSSAIN
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: BEHIND RAMA TALKIES
S.R.NAGAR,
HOSPET, DIST: BELLARY.

... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION,
HOSPET, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1080/2013 (CRIME NO.143/2013) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100449/2014:
BETWEEN:

PAN VALI @ PASHAVALI
AGED ABOUT 51 YEARS,
OCC: BUSINESS,
R/O: S.R.NAGAR, NOORANI MASJID,
HOSPET, DIST: BELLARY. ... PETITIONER

(BY. SRI.V M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION,
HOSPET, REPRESENTED BY SPP
HIGH COURT OF KARNATAKA,
DHARWAD BENCH, DHARWAD. ... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.123/2014 (CRIME NO.256/2013) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE (JR.DN.) & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100456/2014:
BETWEEN

S.MOHAMOOD S/O. SABJANSAB
AGE: 51 YEARS, OCC: BUSINESS
R/O. SGT MANZIL, D NO. 1124/A6
19/24 WARD, SRISANKAL ROAD
GAVISIDDESHWARA NAGAR,
HOSPET, BELLARY.

... PETITIONER

(BY. SRI.V. M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION
HOSPET, R/BY SPP
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1626/2013 (CRIME NO.221/2013) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(1) (a) (iii) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100457/2014:
BETWEEN

S.MOHAMOOD S/O. SABJANSAB
AGE: 51 YEARS, OCC: BUSINESS
R/O. SGT MANZIL, D NO. 1124/A6
19/24 WARD, SRISANKAL ROAD
GAVISIDDESHWARA NAGAR,
HOSPET, BELLARY.

... PETITIONER

(BY. SRI.V. M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION
HOSPET, R/BY SPP
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.796/2012 (CRIME NO.48/2011) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100458/2014:
BETWEEN

S.MOHAMOOD S/O. SABJANSAB
AGE: 51 YEARS, OCC: BUSINESS
R/O. SGT MANZIL, D NO. 1124/A6
19/24 WARD, SRISANKAL ROAD
GAVISIDDESHWARA NAGAR,
HOSPET, BELLARY.

... PETITIONER

(BY. SRI.V. M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION
HOSPET, R/BY SPP
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.842/2012 (CRIME NO.114/2011) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100459/2014:
BETWEEN

S.MOHAMOOD S/O. SABJANSAB
AGE: 51 YEARS, OCC: BUSINESS
R/O. SGT MANZIL, D NO. 1124/A6
19/24 WARD, SRISANKAL ROAD
GAVISIDDESHWARA NAGAR,
HOSPET, BELLARY.

... PETITIONER

(BY. SRI.V. M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION
HOSPET, R/BY SPP
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1505/2013 (CRIME NO.185/2013) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100460/2014:
BETWEEN

S.MOHAMOOD S/O. SABJANSAB
AGE: 51 YEARS, OCC: BUSINESS
R/O. SGT MANZIL, D NO. 1124/A6
19/24 WARD, SRISANKAL ROAD
GAVISIDDESHWARA NAGAR,
HOSPET, BELLARY.

... PETITIONER

(BY. SRI.V. M. SHEELVANT, ADV.)

AND

THE STATE OF KARNATAKA
PSI TOWN POLICE STATION
HOSPET, R/BY SPP
HIGH COURT OF KARNATAKA
DHARWAD BENCH, DHARWAD.

... RESPONDENT

(BY SRI VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE PROCEEDINGS AGAINST PETITIONER INITIATED IN C.C.NO.1625/2013 (CRIME NO.242/2013) PENDING ON THE FILE OF THE PRL. CIVIL JUDGE & JMFC COURT, HOSPET, FOR THE OFFENCES PUNISHABLE UNDER SECTION 78(3) OF KARNATAKA POLICE ACT, 1963.

IN CRL.P. NO. 100891/2014
BETWEEN

MOIN BASHA KURNOOLI
S/O LATE HAJI ABDUL GAFOOR,
AGED ABOUT 42 YEARS,
R/O D. NO.19, W.NO. 28,
MORE GALLI, COWL BAZAAR,
BELLARY.

...PETITIONER

(BY SRI.SHIVARAJ HIREMATH, ADV.)

AND

THE STATE OF KARNATAKA,
BY COWL BAZAAR POLICE STATION,
BELLARY, REPRESENTED BY
PUBLIC PROSECUTOR,
HIGH COURT OF KARNATAKA,
BENCH AT DHARWAD.

... RESPONDENT

(BY SRI. VIJAYAKUMAR MAJAGE, HCGP.)

THIS CRIMINAL PETITION IS FILED UNDER SECTION 482 OF CR.P.C. SEEKING TO QUASH THE FIR DATED 30.12.2011 REGISTERED IN CR.NO.378/2011 BY THE COWL BAZAR POLICE STATION, BELLARY AND SUBSEQUENT CRIMINAL PROCEEDINGS IN C.C.NO.259/2012 ON THE FILE OF THE II-ADDL. CIVIL JUDGE & JMFC COURT, BELLARY, AGAINST THE PETITIONER.

THESE CRIMINAL PETITIONS HAVING BEEN RESERVED FOR ORDERS ON 30.04.2014, COMING ON FOR PRONOUNCEMENT OF ORDERS, THIS DAY, THE COURT PASSED THE FOLLOWING:

ORDER

All the above said 43 Criminal Petitions are clubbed and taken up together for the purpose of convenience and to avoid repetition of facts and legal implications involved in these cases, they are conveniently disposed of by this common judgment since identical questions of law have been raised in these Petitions.

2. Before advertng to the factual and legal matrix of these cases, I feel it is just and necessary to place on record a word of appreciation for the assistance rendered by Sri Sheelvant, learned counsel for the petitioners in the above said cases, Sri Shivraj and as well Sri Banakar, learned Addl. SPP and though not connected to these cases Sri Gundawade Advocate and standing counsel for Lokayukta for having assisted this

Court with all relevant laws and as well the relevant judgments of the different High Courts.

3. I feel it is just and appropriate to begin this judgment with the concept of “Rule of Law”. Our democratic polity under the Constitution, is based on the concept of “Rule of law” which we have adopted and given to ourselves serving as an aorta in the anatomy of our democratic system, in upholding and respecting supremacy of law in our Country.

4. Everyone whether individually or collectively is questionable under the supremacy of law. Whoever he may be, howsoever high, powerful, he is under the laws of the Country. When we recognize the laws so powerful than any other power in the country, such laws to be adhered to by one and all, and it is the fundamental duty of the courts to zealously safe guard the interest of

the citizens of the country protecting their rights guaranteed under the Constitution and other enacted laws for the time being in force.

5. At the outset, the factual matrix of these cases are relevant before enumerating and answering the legal questions raised by the learned counsels for the petitioners and lengthy arguments advanced on both the sides.

6. Different Police stations particularly by name Cowl Bazaar, Bruce pet, Gandhinagar, APMC Yard, Bellary Rural and Extension Police in Bellary, TB Dam Police and Town Police Station, Hospet in Bellary District (Respondents in the above said cases) have on different dates, on receiving credible information that some people were indulged in playing 'Matka' at several areas situated within the jurisdiction of the

above said Police Stations, conducted raids along with their respective police staff and panch witnesses. During the course of investigation, the police have arrested some of the accused persons and seized some articles which were used for the purpose of playing the said game of 'Matka' and thereafter, registered cases respectively and specifically u/s.78(3) of the Karnataka Police Act (hereinafter referred to as '**K.P Act**' for short. After, due investigation on different dates, the respective police have submitted charge sheets against the accused (petitioners herein) for the offence specifically under Section 78 (3) of the K.P Act.

7. As could be seen from the records, in some of the cases, the accused have pleaded guilty and fine had been imposed by the Court. (Who are all not before this court in these petitions?) In some of the cases cognizance being taken, the matters are pending before

the jurisdictional magistrate and summons were issued to some of the accused and in some of the cases, accused persons appeared and enlarged on bail. In some of the cases, plea of the accused have been recorded and some of the cases were set down for evidence. It appears, in none of the cases where petitioners are the accused, the trial has neither begun nor concluded. In this background, the petitioners have approached this court challenging the very investigation done by the police and charge sheet filed against the petitioners and cognizance taken by the Courts, as ab-initio-void because of the non-performance of the statutory duties by the Investigating officers.

8. The learned counsels appearing for the petitioners strenuously argued before this Court raising several important legal issues which are as follows:

- (1) Section 78(3) of KP Act, which is a non-cognizable offence, under which a credible information was received by the Police and FIR was registered and investigation has been done by the police, are all fettered by Sec.155 (2) of the Cr.P.C and the entire proceedings are vitiated by serious illegality as the investigation done by the police is without the permission of the Jurisdictional Magistrate. Therefore, the proceedings are liable to be quashed.
- (2) The defect of non-taking of permission u/s.155 (2) of the Cr.P.C. is not curable u/s.460 (b) of Cr.P.C.
- (3) The charge sheets submitted by the

Police cannot be treated as complaints u/s.2 (d) of the Cr.PC.

- (4) The respondent – Police are not empowered to investigate the matter as no general or special order u/s.81 of the KP Act has been taken as Sec.78(3) also falls under the purview of Section 81 of the KP Act. The officer not below the rank of Sub-Inspector, who is empowered by a general order in writing or authorized in each case by a special order, is only entitled to search and seize any incriminating articles used for the purpose of committing the offence even u/s.78(3) of the Act.

9. Sri Banakar, learned Addl. S.P.P. and Sri Gundawade learned Advocate have submitted their

arguments, countering the legal issues raised by the counsel for the petitioners which are enumerated below:

- (1) Though Section 78(3) of KP Act is a non-cognizable offence, under Schedule II of Cr.P.C, nevertheless, the Police are empowered to arrest the accused involved in such offences u/s.88 of the KP Act. Therefore, the said offence is deemed to be a cognizable offence. Hence, no permission or warrant is required as contemplated u/s.155 (2) of the Cr.PC.
- (2) The KP Act is a special Act. As per Sec.4 & 5 of Cr.P.C. Special Act overrides the general law i.e. Cr.PC.
- (3) There is no necessity for issuing any general or special in writing order u/s.81 of the Act, because Sec.81 only refers to entry, search etc., by the Police Officers in gaming-house not with reference to any public street, thorough fare or any

place as referred to in Section 78(3) of the KP Act.

10. Bearing in mind the above said contentions, this court has to find out whether the court can quash the proceedings on the above said grounds. The entire matter revolves around three important aspects which are to be adjudicated by this Court are as follows:

POINT NO. 1:

Whether Sec.78(3) of the K.P. Act, is a cognizable offence or non cognizable offence, in view of the power of arrest without a warrant provided under section 88 of the said Act.?

POINT NO 2.

Whether in this case, investigation of the cases under section 78(3) of the K.P. Act and all further proceedings before the court

are vitiated by incurable illegalities or defects for want of permission to investigate the case by the competent Magistrate u/s.155 (2) of the Cr.P.C.?

POINT NO 3

Whether the reports (Charge Sheets) of the Police Officers with regard to non cognizable offences in the above cases, can be treated as complaints under section 2(d) of the Cr.PC. If so, under what circumstances.?

11. The points raised above involve interpretation of provisions of Section 2(c) and (d) of Cr.PC with explanation along with Schedule I and II appended to Cr.PC. and also Section 78(3) and 88 of the KP Act.

12. Before interpreting a statute, Court should bear in mind that, a statute is an authentic document

containing the intention and expression of the will of the legislature. The function of the Court is to interpret that document according to the intent of the legislature that made it. The court cannot resile from that function, however ambiguous or difficult the application of the words of the statute or the Act may be. The Court is bound to make its endeavor to place some meaning, upon them. In doing so, the Court should bear in mind, that when the question arises as to the meaning of certain provisions in a statute, it is not only legitimate but proper to read those provisions in their context. The context means, the statute as a whole, the previous statute if any, or any other connecting statutes in pari-materia, the general scope of the statute and the specific and special intention of the legislature, every clause of a statute should be construed with reference to the context and other clauses of the Act, as far as

possible, to make a provision consistent with the entire enactment or series of statutes, or with other relevant statutes relating to the subject matter.

13. It is also a fundamental principle of interpretation of statutes that, the words of the statute, when there is any doubt about their meaning, are to be understood in the sense in which they best harmonize with the subject of the enactment and the object of the Legislature has in view. In order to eradicate the anomaly regarding the doubt about the meaning of a provision in a statute, if the choice is between two interpretations the narrower of which would fail to achieve the manifest purpose of the legislation, one should avoid a construction which would reduce the legislation to futility and should rather accept the bolder construction based on the intention of the legislature to bring the effective and intended result. Where

alternative constructions are equally open, that alternative is to be chosen which harmonizes with other statutes and consistent with smooth working of the entire system which the statute purports to be regulating, and that alternative has to be rejected which will introduce uncertainty, friction, or confusion into the working of the system.

14. In this backdrop, now, I will take up the above said points one by one:

POINT NO.1:

15. The factual matrix as I have already quoted indisputably shows that the respondent - police have received the credible information on different dates that some people are playing 'Matka' game at different places. It appears, after receiving such credible information, u/s.78(3) of the K.P. Act, the police have

proceeded to the spot. The records disclose that the police went to the spot and raided the said places, arrested some of the accused persons, seized certain articles used for the commission of the offence and thereafter came to the Police Station, registered the FIRs. u/s.78(3) of KP Act and, submitted the charge sheets on different dates. This clearly indicates that soon after receiving the credible information, even after raid, registration of the FIR, filing of the Charge Sheets, there is no change in the nature of the offence committed by the accused persons i.e. to say u/s.78 (3) of the KP Act. As per the said Act, Sec.78(3) is punishable with imprisonment which may extend to 3 months or with fine, which may extend to Rs. Three hundred or with both.

16. Now, the Court has to ascertain whether Section 78(3) of the KP Act is a cognizable or non

cognizable offence in order to attract Section 155 (2) of Cr.PC. For this, it is just and necessary to have the definition of cognizable offence and non cognizable offences with reference to the Schedule I & II appended to the Code.

Section 2(c) of the Code defines ‘cognizable offence’ means an offence for which, and ‘cognizable case’ means a case in which, a Police Officer may, in accordance with the First Schedule or under any other law for the time being in force, arrest without warrant;

Section 2(l) defines ‘non-cognizable offence’ – means an offence for which and ‘non-cognizable case’ means a case in which, a Police Officer has no authority to arrest without warrant.

17. These two provisions have to be read along with Schedule I and II appended to the Code. The I

Schedule classifies the offences and also declares which offences are cognizable or non-cognizable. The explanatory note to the I Schedule, also reads as follows:

(1) In regard to offences under the Indian Penal Code, the entries in the second and third columns against a section the number of which is given in the first column are not intended as the definition of, and the punishment prescribed for, the offences in the IPC, but merely as indication of the substance of the section.

(2) In this schedule, (i) the expressions 'Magistrate of the First Class' and 'Any Magistrate' include Metropolitan Magistrates but not Executive Magistrates; (ii) the word 'cognizable' stands for 'a police officer may arrest without warrant', and (iii) the word 'non-cognizable' stands for a police officer shall not arrest without warrant".

Schedule-I in fact, gives provisions at column No.1, brief definition at column No.2, punishment prescribed at column No.3, whether it is cognizable or non-cognizable at column No.4, whether the offence is bailable or non bailable at column No.5 and offence is triable by which court at column No.6.

18. In the I Schedule, depending upon the gravity of the offence, irrespective of the period of punishment prescribed, the offences are categorized as cognizable or non-cognizable offences. On perusal of the I Schedule, some of the offences though punishable with more than three years of imprisonment are made as non-cognizable and some of the offences though the punishment prescribed is less than three years are made as cognizable offences. Therefore, irrespective of

the punishment prescribed, considering the nature and gravity of offences, the offences are classified as cognizable or non-cognizable offences.

19. In this background, Schedule II play a very important role so far as this case is concerned. The II Schedule refers to 'classification of offences under other laws'. This schedule comprises of four columns. The First column refers to the punishment prescribed under other laws, second column refers to whether the offences are cognizable or non cognizable, third column refers to whether the offences are bailable or non bailable and fourth column refers to which court has jurisdiction to try the case. As per this schedule, if the offences are punishable under any other penal laws for the time being in force, imprisonment for more than seven years, and imprisonment for more than three

years and up-to seven years are categorized as cognizable offences. If the punishment is less than three years or with fine only, they are categorized as non-cognizable offences.

20. On combined reading of the provisions of Sec.2(c) and 2(e) read with Schedule I & II appended thereto, it clears the doubt, in so far as the other penal laws are concerned, the offences which are punishable with imprisonment less than three years and fine only are categorized as non-cognizable offences. Insofar as it relates to cognizable offences are concerned, the Police Officers can arrest the accused without warrant in accordance with the Schedules or under any other laws for the time being in force. So far as non cognizable offences, if it falls under II Schedule, the Police Officer has no authority to arrest any person without warrant

and investigate the case without permission under section 155(2) of the Code. The definition clause under Section 2(c) and 2(e) of Cr.PC as per the submission of the learned counsel for the petitioners cannot be read independently or in isolation, if they are harmoniously read together in combination with each other that would give a clear indication that mere power to arrest the accused persons unless the offence is categorized as a cognizable offence under I Schedule, the offences which are categorized as non-cognizable offences under II Schedule cannot be converted into or deemed to be a cognizable offence. Though Section 88 of the KP Act empowers the police to arrest a person without warrant for the offence u/s.78(3) of the KP Act, it cannot be said that such non-cognizable offence can be deemed to be considered as cognizable offence.

21. In order to thrash out whether the power to

arrest given to the police under a special Act can convert a non-cognizable offence into a cognizable offence. And if so, whether the schedule II appended to the Cr.PC becomes redundant by virtue of the empowerment under any other laws to the police to arrest a person without a warrant. This aspect of the matter in my opinion leads to a detailed perseverance of legal pronouncements and the law on this particular point. Therefore it is just and necessary for me to go through several rulings of the different High Courts, which have different views insofar as the legal aspects are concerned.

22. In the case of **State vs. Bibi Rehman, reported in 1956 Saurashtra 116 (AIR V 43 C 40 DEC.)** the Sourashtra High Court, at paragraph 7 held as follows:

“Sec.18 of Saurashtra Prevention of Prohibition Act is the only section which gives the police power to arrest without a warrant and it is legitimate to assume that in other cases, the Act did not intend to confer that power upon them. If so, all offences under the said Act, except those to the extent mentioned in Sec.18 are non-cognizable offences notwithstanding schedule II of the Cr.P.C. Therefore, by virtue of the provisions of Sec.155 (2) of the Cr.P.C, the police cannot investigate such offences except under an order of Magistrate.”

23. This ruling indicates that under any other law, if the police are empowered to arrest a person without warrant, such offences, irrespective of the schedule appended to the Cr.P.C can be classified or considered as deemed cognizable offences.

24. In **Maganlal Bagdi and Others vs. Emperor**

AIR 1934 Nagpur 71, at page 75, the Nagpur High Court has held that –

“The words “or under any other law for the time being in force” in Section 4(e) of Cr.PC, have reference to such offences which are punishable with imprisonment for less than three years, but are specified as offences, for which, the police may arrest without a warrant, i.e. offences which but for the special provision, would not under the Code of Criminal Procedure be cognizable offences.”

25. This ruling also enunciates, that if the special provision empowers a Police Officer to arrest without a warrant, then such offences can be categorized as cognizable offence irrespective of anything contained in the Cr.PC. The Nagpur High Court while dealing with Sec.95(f) of the Arms Act, has considered the said provision in consonance with the

definition of 'cognizable offence' under the Code.

26. In the case of **Maroti Bansi Teli Vs. Emperor reported in AIR 1939 Nagpur, 95**, the Court held that –

“If the power to arrest without a warrant is limited to any particular class of Police Officer, that does not prevent the offence being regarded as a cognizable one though the offence u/s.34 of the KP Act is punishable with imprisonment of less than three years.”

27. On reading of the above said decisions, it gives a broad meaning that if the Police Officer is otherwise empowered to arrest a person without warrant in connection with an offence under any other laws for the time being in force, though the offence is punishable with less than three years and falls under II

Schedule of the code, it should be treated as a cognizable offence only. If the above said views are taken as a preposition giving the correct law, then in this case, though the offence u/s. 78(3) of the KP Act, which is only punishable with imprisonment, which may extend to Three months or with fine, has to be treated as a cognizable offence as the Police Officer is empowered to arrest a person without a warrant as empowered u/s.88 of the KP Act.

28. Therefore, it is just and necessary to refer to the other rulings which gives contrary opinion, before arriving at a certain and definite conclusion.

29. In a decision between **Public Prosecutor Vs. A.V. Ramaiah, reported in 1958 CrLJ, 737**, the division bench of A.P. High Court held that –

“The offence u/s.12 of the Madras

Gaming Act, was not a cognizable offence within the meaning of Sec. 4(1)(f) of the Cr.P.C, 1898 inasmuch as Sec.13 of the said code, did not confer an un-restricted power of arrest on the Police Officer, but gave him only a limited power, in that he could arrest without a warrant, only if the offence was committed in his view, but not otherwise. Their Lordship's observed that it was not for all offences u/s.12, but only for some offence that a Police Officer might arrest without a warrant. It therefore, followed that an offence u/s.12 of the Act was not a cognizable offence”.

30. This ruling clearly emphasizes that the Court has to see the circumstances under which the Police Officers can arrest a person without a warrant. If it is not a general power given to the police and the said power is a limited power, only under special circumstances to some of the offences under the special

Act, depending upon the nature of the offence committed, then such power cannot be called as general power and such power of arrest without warrant cannot change the nature of the case that is a non-cognizable into a cognizable offence.

31. In a case between **State of West Bengal Vs. Joginder Mallick, reported in AIR 1979 CrLJ 539**, the Calcutta High Court while considering sec.2© of the Act at paragraph 6 has laid down the following principles:

“In my considered view, to bring an offence within the definition of a “cognizable offence” u/s.2(c) of the Code, the offence by itself should be such for which the offender can be arrested without a warrant of arrest. If for commission of such offence under certain circumstances, the police is given the power to arrest without warrant that would not make the offence cognizable. In that view

of the matter and in view of the punishment provided for the offence u/s.33 (a) of Calcutta of the Act, it is not a 'cognizable offence' under the I Sch. of the Code nor has the offence been made a cognizable one under the Act. The only power that has been given under the Act is that when it is committed under certain circumstances, the police have a right to arrest without a warrant. The purpose for which such power has been given to the Police Officer is also patent. When a person is found in possession of anything within the meaning of Sec.33 of the Act on a street or a public place, by a Police Officer, it will be ridiculous to suggest that the Police Officer will have to rush to a Magistrate to obtain a warrant for apprehending him. It must therefore, be held that notwithstanding power of the Police Officer to arrest without warrant, a person committing an offence u/s.33A of the Act, in exercise of the powers conferred by sec.43(1), the offence is not

cognizable one.”

32. This ruling in fact is a thought provoking ruling, which indicates that the court has to apply its mind to ascertain the purpose and object of the Special Act or any other law for the time being in force, which empower the Police Officer to arrest a person without warrant, if such power is given only for a limited purpose to meet certain contingencies, otherwise than that circumstance, if the Police Officer has no power of arrest for the said offence without a warrant, then such power of arrest without a warrant, cannot convert a non cognizable offence into a cognizable offence.

33. In a case between Narain Singh Vs. State of Delhi reported in C.Cr.C-1986-0-182, the Delhi High Court has held that -

“The purpose for which the power to

arrest under any other law for the time being in force has been given to the Police Officer, particularly in this case u/s.93 r/w.97 of the Police Act. It is to enable the Police Officer in whose presence an offence of misbehavior with an intent to provoke breach of peace or which may cause a breach of peace cannot be expected to be a mere silent spectator. It is ridiculous to suggest that the police officer will have to rush to a Magistrate to obtain a warrant for apprehending the culprits. In other words, he has to act quickly to take a decision for himself on the spot. Hence, I am of the considered view that an offence punishable u/s.97 of the Act cannot be said to be cognizable offence merely because power to arrest has been conferred on a Police Officer to arrest the accused under certain circumstances. In other words, such an offence is non-cognizable.”

34. This decision also illustrate that mere

empowerment of a Police Officer to arrest a person without warrant does not clothe the capacity to convert a non-cognizable offence into a cognizable offence unless such power is general and un-fettered in nature. But, if the court is of the opinion that such power of arrest, without a warrant provided to the Police Officer, is clothed with fetters under peculiar circumstances, such power of arrest without warrant cannot shake the general provisions of the Code and the Schedule appended therein.

35. The divergent views expressed by different High Courts if understood logically, in my opinion the second set of rulings stand to the logic and also properly and correctly interpreted the law, and also intention of the legislators in bringing the special enactment and empowering the Police Officer with a power to arrest a person without a warrant under peculiar circumstances

of each offences, in contrast to the general power under the Code. Therefore, I agree with the opinion of the High Courts of Andhra Pradesh, Calcutta, and Delhi for my following reasons also.

36. Having gone through the above said divergent rulings of different High Courts, it becomes necessary for this Court in detail to deal with the provisions under Sec.78 (3) and Sec.88 of the KP Act, in order to ascertain whether the powers given to the Police Officer under the Police Act is only a limited power under peculiar circumstances to meet the contingencies and are not general powers and that, they are unfettered powers to the police. In this background, now let me elaborately discuss Sec.78 (3) which reads as follows:

“78(3) Whoever is found gaming on any

of the objects specified in sub section (1) in any public street or thoroughfare or in any place to which the public have or are permitted to have access shall, on conviction be punished with imprisonment which may extend to three months or with fine which may extend to three hundred rupees, or with both.

(Emphasis supplied)

37. On plain reading of the above said provision, it is crystal clear that the said offence falls under II Schedule to the Cr.P.C and it is clearly a non-cognizable offence. Sec.88 of the KP Act, reads as follows:

“88. Power to arrest without warrant persons gaming in public places – A Police Officer may arrest and search without warrant, any person gaming or reasonably suspected to be gaming in contravention of sub Section (3) of section 78 or Section 87 of the Act.”

38. The above said power to arrest a person without warrant under this provision is specifically restricted to Section 78(3) and Section 87 of the Act. As could be seen from the above said definition, Section 78 itself comprises of three sub-Clauses. Section 78(1) is an offence which prescribes a punishment of imprisonment which may extend to one year or with fine and sub clause (2) is also an offence which is punishable with imprisonment which may extend to one month or with fine. So far as these two clauses are concerned the Police Officers are not empowered u/s.88 to arrest a person without a warrant. I have also carefully perused the KP Act in its entirety. The following Table gives a clear picture of the offences and punishments prescribed under the provisions of the KP Act.

Sl. No.	SEC	Imprisonment	Fine in Rs.	Particulars
1	78 (1)	1 Year	1000/- or Both	
2	78 (2)	1 Month	500/- or Both	
3	78 (3)	3 Months	300/- or Both	Arrest without warrant
4	80	1 Year	Fine	
5	87	3 Months	300/- or Both	Arrest without warrant
6	89		Fine only 50/-	
7	90	6 Months	Fine	
8	91			Punished accordingly
9	92		100/-	If Default 8 days
10	93	1 Month	100/- or Both	
11	94 (2)		Fine only 20/-	Person alleged to have committed therein or thereon P/U/S (1) Without Warrant
12	95	3 Months	100/- or Both	
13	96	3 Months		
14	97		500/-	Unless redeemed within two months by payment of such 500 Rs. as the Govt. or the Dist. Magistrate in areas under his respective charges imposes
15	98		50/-	In respect of each such article of property so in his possession or offered to him
16	100	3 Years	Fine or Both	
17	101		Fine only 100/-	
18	102		Fine only 100/-	
19	103 (a) (b) (i) (ii) (iii)	3 Months	Fine only 100/- 500/- or Both 50/-	If default 8 days
20	105 (3)	1 Month	50/- 200/- or Both	
21	106	3 Months	500/- or Both	
22	107 (a) (b)		Fine Only 500/-	

23	108 (i) (ii) (iii)	1 Year Be less than 4 Months 1 Month	And fine 100/- or Both Fine only 100/-	Under S/s (1) Sec.35 or U/s 38 or Sec.39 with imprisonment for term which may extend to 1 year but shall not, S/s (2) Sec.35 S/s (3) Sec.35
24	109	3 Months	100/- or Both	
25	110 (1) (2)		Fine only 100/- 25/-	For every day that order continues to be disobeyed by him.
26	111	3 Months	200/- or Both	
27	112		Fine only 50/-	
28	113	1 Year be less than 4 Months	Fine	
29	114	2 Years be less than 6 Months	Fine	
30	115	2 Years	Fine	
31	116 (2)	1 Year 3 Years	Fine or Both Fine or Both	
32	117		Fine only 50/-	
33	118 (1) (ii) (a) (b) (c) (d) (e) (2)	3 Months	100/- or Both	Withdraw himself from the duties of his office within the meaning of Sec.27.
34	119	1 Month	200/- or Both	
35	120	6 Months	500/- or Both	

36	121	6 Months	500/- or Both	
37	122	1 Year be less than 4 Months	Fine	
38	123	6 Months	200/- or Both	
39	124			Shall not be cognizable except by a Magistrate not lower than a Magistrate Second Class
40	125		Fine only 200/-	
41	126			Warning given
42	127 (1)		Fine only 25/-	
43	128			Provided that all such cases shall be subject to the previous of Sec.403 of the CPC,1898.
CHAPTER IX VILLAGE POLICE				
44	137 (1) (i) (ii) (2)		Fine not exceeding one- fourth of the annual emoluments on his office.	Suspension from office for a period not exceeding 6 Months. Liable to be called for performance of police duties the punishment of removal or dismissal from office.
45	138			Liability to Criminal prosecution and affected
46	141 (1)			Police Officer may arrest without warrant & forward such person within 24 hours of arrest
47	142			Unclaimed property

CHAPTER X STATE RESERVE POLICE FORCE				
48	147 (3)			If RPO resign in contravention of this sec. he shall be liable.
49	153	1 Year	100/- or Both	
50	154	3 Months	500/- or Both	
51	155 More heinous offences (a) (b) (c) (d) (e) (f) (g) (i) (ii) (iii) (iv) (v) (vi)	14 Years	Fine	
52	156 Less heinous offences (a) (b) (c) (d) (e) (f) (g) (h) (i) (j) (k) (l)	6 Months	500/- or Both	
53	157	6 Months	500/- or Both	
54	158 (1)			Place of imprisonment and liability to dismissal on imprisonment

55	159 Minor punishments (1) (a) c) (2) (3) (4) (5)			Fine 1 Month's pay	Punishment drill, extra guard, fatigue or any other duty for a term 14 days, and when the order is passed by any other officer, to 7 days. Forfeiture of pay and allowance or such portion of pay and allowance as he considers necessary for a period which may extend when the order is passed by the Commandant, to one month, and when the order is passed by any other officer, to ten days.
CHAPTER XI MISCELLANEOUS					
56	163 (3)	8 Days	10/-		For every breach of any rule under clause (ii) of S-s(2) the offender shall, on conviction.
57	168		Shall pay the penalty thereof		Show cause to the satisfaction of the Court why such penalty should not be paid

39. On careful perusal of the above tabular column, it shows that some of the provisions under the KP Act, though punishable with imprisonment for less than three years or with fine, the Police Officers are not empowered to arrest a person without warrant whenever such offences are committed. Some other provisions, which are though punishable with imprisonment less than three years or with fine, the Police Officers are empowered to arrest a person without warrant. The intention of the legislature while enacting the K.P. Act is made it clear that under certain circumstances for particular nature of offences, though they are punishable less than three years or with fine, the Police are empowered to arrest a person without warrant. This gives me a clear indication that, depending upon the nature, gravity, need and urgency to empower a Police Officer to arrest a person without

warrant, search and seize certain articles, the Police Act empowered them clothing with the power to arrest a person without warrant. Therefore, at any stretch of imagination, the entrustment of such power of arrest without a warrant cannot be called as a un-fettered or general power in nature, in order to convert a non-cognizable offence into a cognizable offence.

40. It is also an important aspect to be noted is that, the K.P. Act does not contain any schedule as contained in the Cr.PC or there are no distinct and separate definitions for cognizable offences or non-cognizable offences, in contrast to the definitions under the Code. Therefore, the Court has to apply the definition of 'non cognizable offence' as per section 2(e) coupled with the Schedule of offence given under the code.

41. The creation of two schedules to the Criminal Procedure Code play a decisive role in order to ascertain the real intention of the law makers i.e. to say the intention of the law makers must be not to give absolute power to the police to arrest a person invariably but depending upon the punishment prescribed for the said offence i.e. to say arrest without a warrant if the offences are punishable with imprisonment for more than three years and not to arrest without a warrant, if the offences are punishable with imprisonment less than three years. It should be noted that, it all depends upon the nature and gravity of the case. Power of arrest is conferred on the police declaring under the schedule whether the offence is cognizable or non-cognizable, otherwise, the law makers would have simply given the definition as per Section 2 (c) and (l) of the Code without inserting Schedule I & II

to the Code. Therefore, the real inbuilt and latent intention of the law maker is that the power of arrest depends on the declaration by law whether it is cognizable offence or non-cognizable offence as per the Schedule to the Code. I can understand, if there is no Schedule appended to Cr.PC the simple definition under Section 2 (c) of the Code could have come to the help of Police Officer or if there is any Schedule appended to the Police Act, declaring the particular offence as cognizable or non-cognizable and particularly Section 78(3) of the Act as cognizable so far as this particular case is concerned. Therefore, I am of the opinion, that the Schedule appended to the Cr.PC is the basis for the purpose of considering whether the offences under Indian Penal Code or any other law for the time being in force, is cognizable or non-cognizable in nature, irrespective of the power of arrest given to the Police

under special circumstances by special enactment.

42. The above said analogy can also be very well illustrated by taking re-course to Sec.41(d) of the Code and the powers of the Police to arrest a person as provided under Chapter V of the Code. On careful examination of Sec.41(d) of the Code, which is a non-cognizable offence and the police can proceed to arrest the suspect without a warrant for an offence u/s.41 of the Code under the special circumstances provided therein. If the scheme of Chapter V is carefully scrutinized, it clearly gives an indication that this chapter deals with the general powers of the Police Officer to arrest the person. Sec. 41 of the Code is therefore, does not empower the Police Officer to arrest a person in general but the said provision is a departure from general powers and a depository of the general powers of the Police Officers to effect the arrest, but it

does not mean that the Police Officer under this Chapter are more precisely u/s.41 of the Code has got powers to arrest a person in a case of non-cognizable offence. This power is undoubtedly subject to various other provisions contained in the code. Therefore, it cannot be read in isolation and as an absolute power of arrest. Sub clause (d) of Sec.41 of the Code undoubtedly authorizes a Police Officer to arrest a person in whose possession, anything is found which may reasonably be suspected to be stolen property and who may be reasonably suspected of having committed an offence with reference to such things. Therefore, in a given case, if the circumstances as noted in the Penal provision is covered by the provisions of Section 41(e) of the Code, the Police Officer would be justified in arresting a person without warrant. But the said analogy would not be correct where the circumstances

under the penal provisions are not available to the Police Officer to arrest a person without warrant. In this backdrop, it can be said that those powers are specially and specifically given to the Police Officers and the same is carved out of general powers. Therefore, it cannot be said that it is a general power of the police to arrest a person in all non-cognizable cases without a valid warrant and investigate the matter, without the permission of the court.

43. As could be seen from the Police Act, the offences are minor offences. Particularly Sec.78(3) of the KP Act is a minor offence which is punishable with imprisonment for three months or with fine. The said Sec.78(3) of the KP Act disclose that the offences being committed or expected to be committed on a public street, thorough fare or in a place to which the public have, or permitted to have access. Perhaps that may

be the reason, immediately after receipt of the credible information by the time if the Police Officers have to rush to the Jurisdictional Magistrate or competent person to obtain warrant and then proceed to the place of incident for arresting or seizing the article, by the time they reach the place, the accused or the persons who have committed are reasonably expected of having been committed the offence may escape from the said place. Therefore, under such circumstances, a swift and quick action by the Police is required to prevent the offence being committed, or to take immediate action about the offence being committed by the accused persons, they have to rush to the spot and take immediate action. Therefore, that may be reason, under the Police Act especially the police are empowered to arrest a person without warrant, that does not mean to say, the power of arrest given to the police under

peculiar circumstances as noted above can convert a non-cognizable offence into a cognizable offence so as to obviate the other procedural mandates of the law. Therefore, agreeing with the above said rulings of the Hon'ble High Court of Delhi, Calcutta and Andhra Pradesh, I hold that the power of arrest u/s.88 of the K.P. Act is only a power of arrest given to the police under peculiar circumstances and u/s.78(3) of the Act under special circumstances, and the said power of arrest is not a general power of arrest so as to draw an inference that the Police Officer is authorized to arrest a person in any other law for the time being in force as contemplated u/s.2(c) of the code in order to bring Sec.78(3) of the KP Act under the category of cognizable offences. Therefore, the offence u/s.78(3) of the KP Act shall be categorized as a non-cognizable offence as per the II Schedule of Cr.PC.

44. POINT NO.2.

Now the next important question that arose for discussion is that - *“Whether the investigation done by the Police Officer is violative of Sec.155 (2) of Cr.P.C.?”* In this regard, I feel it is just and necessary to quote the said provision for the purpose of interpreting the same in view of the above said circumstances. Sec.155 of Cr.P.C reads as follows:

“155. Information as to non-cognizable cases and investigation of such cases –

(1) when information is given to an officer in charge of a police station of the commission within the limits of such station of a non-cognizable offence, he shall enter or cause to be entered the substance of the information in a book to be kept by such officer in such form as the state Government

may prescribe in this behalf, and refer the informant to the Magistrate.

(2) No Police Officer shall investigate a non-cognizable case without the order of a Magistrate having power to try such case or commit the case for trial.

(3) Any Police Officer receiving such order may exercise the same powers in respect of the investigation (except the power to arrest without warrant.) as an officer in charge of a police station may exercise in a cognizable case.

(4) Where a case relates to two or more offences of which at least one is cognizable the case shall be deemed to be a cognizable case, notwithstanding that the other offences are non-cognizable.”

45. If the above said provision is read in consonance with Sec.2(l) of the Cr.PC, it clearly

prohibits or restrains a Police Officer to investigate a non-cognizable offence without prior permission of the concerned Magistrate. The above provision also mandates that the Police Officer who receives such credible information shall enter or cause to be entered in a book to be kept by such officer in such a form as the State Government may prescribe in this behalf and refer the informant to the Magistrate. Sub Sec.(2) of Sec.155 of the Code also another mandatory provision under which the Police Officer shall not investigate a non-cognizable offence without the order of a Magistrate having power to try such case or commit the case for trial. Thus, it is obvious that after entering the information with regard to a non-cognizable offence in the diary maintained by the police, there should be an order by the Magistrate for the purpose of entering into the stage of investigation. The order under sub Section

(2) in fact, cannot be passed by the Magistrate without applying his judicious mind. Therefore, it goes without saying that for the purpose of a genuine investigation of a non-cognizable case, the Magistrate is empowered to permit the police to investigate the offence. The question cropped up in this case is, whether such procedure has been followed by the police or not.

46. Recaptuating to the factual matrix of the cases involved at the cost of repetition, it is clear from the records that the police have received the credible information with regard to some persons playing **matka** at different places in the District of Bellary within the jurisdiction of several Police Stations on different dates. It appears, the police have recorded the information in the register maintained in the Station and then preceded to the spot. The further peculiarity is after coming back from the spot, the Police have registered

cases with detailed information u/s.78(3) of the KP Act and submitted the FIR to the Magistrate. And even at that stage also, the police have never taken any permission from the concerned Magistrate for the purpose of further investigation and for submission of the charge sheet before the Court. It is also relevant to note here, the charge sheets were filed subsequently some time after sending of the FIR to the Magistrate. The incurable defect or illegality in the investigation also prohibit the Magistrate from taking cognizance on the basis of such report unless the said report is treated as a complaint u/s.2(d) of Cr.PC. The violation of the mandatory provision vitiates the entire investigation and the cognizance and continuation of the case before the criminal court if the trial is not concluded. Sec.155 of Cr.P.C is not a directory but it is a mandatory provision in view of the word “shall” used in the said provision.

47. In this regard, I can gainfully rely upon a decision between **H.N. Rishbud and another vs. State of Delhi reported in AIR 1955 SC 196,**

“In which case, the investigation into the offence was u/s.5 of the Prevention of Corruption Act, was discussed. In that case the investigation was conducted by a Police Officer without obtaining an order of the Magistrate as required by sec.5 (4) of the said act. The Supreme Court held that the provision of requiring an order of the Magistrate to a Police Officer not otherwise authorized to investigate is mandatory provision of law, and therefore, the investigation conducted in violation thereof bears the stamp of illegality.”

(emphasis supplied)

48. In another decision between **Keshav Lal Thakur Vs. State of Bihar, reported in (1996) 11**

SCC 557, the Hon'ble Apex Court reiterated the above principle as -

“Representation of the People Act 1950: Sec 31 - Investigation into, and taking cognizance of, offence under – Legality - Being a non-cognizable offence, investigation into offence u/s.31 without an order of a competent Magistrate under section 155(2) of Cr.PC., held to be illegal. Hence, the Magistrate could not take cognizance thereof upon the report submitted on completion of such investigation.”

49. Therefore, in view of the above rulings and the tone and tenor of Sec.155(2) of Cr.PC, I am of the considered opinion that the investigation done in these cases is seriously vitiated by incurable defect and the investigation itself is illegal and the same is not tenable.

50. The second important limb of this point is that whether the defective investigation done by the

Police in a non-cognizable offence without taking permission from the Magistrate and filing the charge sheet and the Magistrate taking cognizance on the basis of such investigation is a curable defect. Some irregular proceedings before the court as contemplated under Chapter XXXV, u/s.460 of the Code are curable. But in my view, Section 460 of the Code does not authorize to regularize an illegality committed by the Police or by the Magistrate, but it would cure only irregular proceedings and not an illegal proceedings. Section 460(b) of the Code saves any irregularity in passing any order by the Magistrate u/s.155 of the Code, in permitting the police to investigate a non cognizable offence. Here, that is not the case because no order has been passed by the concerned Magistrate permitting the police to investigate the case. Sec.460 (e) of the Code saves any irregularity in taking cognizance of an offence under

Clause (a) or Clause (b) of sub Section (1) of Section 190 of the Code. In this particular case also Section 190(a) or (b) of the code are not at all applicable because Section 190(a) refers to cognizance of any offence by the Magistrate upon receiving a complaint of facts which constitute such an offence i.e. to say the complaint filed u/s.2(d) of Cr.PC. Section 190(b) refers to a cognizance of an offence by the Magistrate upon a police report of such facts. The police report refers to u/s.173 of Cr.PC., but in the cases on hand, said reports are without the permission of the Magistrate u/s.155(2) of the Code. Therefore, these proceedings cannot be called as irregular proceedings.

51. It is also worth referring to Section 461 of Cr.PC which refers to the irregularities vitiates the proceedings. Sub Clause (k) of Section 461 of the Code provides that, if any Magistrate not being empowered by

law in this behalf takes cognizance of an offence under sub Clause (c) of sub Section (1) of Sec.190 of the Code is also curable. Sec.190(c) refers to the cognizance of the offences by the Magistrate upon information received from any person other than a Police Officer or upon his own knowledge that such offence has been committed. Therefore, here in this particular case, the Magistrate has taken cognizance on the basis of the report of the Police Officer which cannot be treated as a report u/s.173 of Cr.P.C. Therefore, I am of the opinion, that the provisions of Sec.460 and 461 of the Code also does not come to the aid of the Police to file a report to the Magistrate to take cognizance, unless he applies his judicious mind on the police report submitted after investigation of a non-cognizable offence and treats the report as a complaint u/s.2(d) of the Code. Hence, I hold this point in the 'affirmative'

and the entire investigation and the cognizance of all further proceedings in the above cases are vitiated by incurable defects and illegality.

52. POINT NO 3

The conclusions on Point Nos. 1 and 2, now leads me to discuss whether the report submitted by the Police in all the above cases after investigation of non-cognizable offences could have been treated as a complaint under the provisions of Sec.2 (d) of the Cr.PC.

53. In order to treat a police report as a complaint u/s.2(d) of Cr.P.C, it is just and necessary that, the police have to make out a case that their report falls under the proviso to Sec.2(d) of the Code. As discussed above, Sec.190(b) of the Code, in view of the express prohibition contained in Sec.155(2) of the Code, a Police Officer is restrained from investigating a

non-cognizable offence without prior permission of the concerned Magistrate. In order to treat the said report of the Police Officer as a complaint after investigation of a non-cognizable offence, under Section 2(d) of the Code and explanation appended to the section, the provisions have to be meaningfully understood. Therefore, it is just and necessary to keep in mind what exactly Section 2(d) of the Code says, which reads as follows:

“In this Code, unless the context otherwise requires, -

*2(d) “**complaint**” means any allegation made orally or in writing to a Magistrate, with a view to his taking action under this Code that some person, whether known or unknown, has committed an offence, but does not include a police report.*

Explanation: A report made by a Police Officer in a case which discloses, after

investigation, the commission of a non cognizable offence shall be deemed to be a complaint, and the Police Officer by whom such report is made shall be deemed to be the complaint.”

(Emphasis supplied.)

54. Before recording my views on this point, it is just and necessary to bear in mind some of the decisions on this regard.

(a) In a decision reported in **C.Cr.C.1986-0-182 of Delhi High Court between Narain Singh vs. State of Delhi**, cited supra, the Court observed that –

“The court can take cognizance of the offence of non-cognizable nature. If a report submitted by the Police Officer in a case discloses, after investigation, the commission of non-cognizable offence came to his knowledge in such an event, there is no bar to

the Magistrate to take cognizance. This view is also expressed by several High Courts, i.e. in Tapan kumar Gosha Vs. State of West Bengal and another in 1996 Cal. Law J. 123, state of West Bengal.. vs. Joginder Malli 1975 CRL.LJ 19, Maniyeri Madavan Vs. State of Kerka 1981 CRL.LJ 560 Bajji vs. State of MP 1981 CRL.LJ 1558, in Chiltikkoodadhil Manual Augustin Vs. State of Kerala 1984 CRL.LJ 1987 the courts have held that the defects in investigation is not sufficient to hold that the Magistrate has no jurisdiction to take cognizable treating it as complaint u/s.2(d) of the code.

(emphasis supplied)

(b) In a decision between **P.Kunhumammad Vs. State of Kerala in LAWS (KER)-1980-12-10** Hon'ble Jus. U.L. Bhatt observed at paragraph 8 after relying upon innumerable decisions of different High Courts have laid down some suggestions and as to

under what circumstances the defective investigation can be obviated. In which it is stated that –

“The report of a Police Officer following an investigation contrary to Section 155(2) could be treated as a complaint under Section 2(d) read with Section 190(1)(a) of the Code if at the commencement of the investigation, the Police Officer was led to believe that the case involved commission of a cognizable offence or if there is any doubt about it, and later investigation establishes, only commission of a non-cognizable offence. If the commencement of the investigation, it is apparent that the case involved only commission of a non-cognizable offence, the report followed by investigation cannot be treated as a complaint, u/s.2(d) read with Sec.190(1)(a) of the Code. Whenever a report of the Police Officer relating to a non-cognizable offence is brought to the notice of the Magistrate, he has to look into the matter

and apply his judicious mind and find out whether, it is a case where re-investigation has to be ordered u/s.2(d) of the Code or whether it could be treated as a complaint u/s.2(d) read with Sec 190(1) and if so, cognizance can be taken or whether it is a case where the report cannot be treated as a complaint u/s.190(1) or it is a fit case for taking cognizance taking into consideration all the attended circumstances. If these aspects are not brought to the notice or adverted to the Magistrate and trial is concluded the trial cannot said to be vitiated on account of the defect as the defect in the investigation precedent to trial could be cured by Section 465 of the new code unless failure of justice has occasioned thereby.”

(c) In another ruling in Keshavlal Takurlal Vs. State of Bihar reported in **1996 (11) SCC 557**, the Hon’ble Supreme Court has observed –

“the police investigated an offence u/s.31 of the Representation of People Act, which is a non-cognizable offence therefore, the Police Officer – u/s.157 of Cr.P.C of course the police is entitled to investigate into a non-cognizable offence pursuant to an order of Magistrate u/s.155(2) of Cr.P.C. but admittedly, no such order was passed in the instant case. That necessarily means that neither the police could investigate into the offence in question nor submit a report on which the question of taking cognizable could have arisen. While on this point, it may be mentioned that in view of Sec.2(d) of Cr.PC which defines complaint, the police is entitled to submit after investigation a report relating to a non-cognizable offence in which case, such a report is to be treated as a complaint of the police officer is concerned but that explanation will not be available to the prosecution here, as that related to a case where the police initiates investigation into a

cognizable offence unlike the present one, but ultimately finds that only a non-cognizable offence has been made out.”

55. On meaningful understanding of the above said rulings, it is just and necessary to re-look into the factual matrix of this case, whether really the police have started the investigation at the initial stages i.e. to say, at the time of recording a credible information about some people playing **matka** in a public street, or a thorough fare or public place believing that apart from the offence under section 78(3) of the KP Act some other cognizable offences were also committed, so as to infer that the police have proceeded to the spot on such belief, and investigated the matter and after investigation, they found only non-cognizable offences were committed. The records in all the cases invariably, unerringly and indisputably disclose that the police

have the credible information about the commission of specifically a non-cognizable offence under Section 78(3) of the KP Act. Even at the cost of repetition, I may say here that the police on such credible information who had been to the place of occurrence found only an offence under sec.78(3) of KP Act was committed, they came back to the Police Station and registered cases u/s.78(3) of the K.P. Act only. It is also quite a disturbing factor to note here, even after sending the FIR to the Magistrate for the said offence, without taking permission from the Magistrate; they proceeded with further investigation and later submitted the charge sheets after some days of submitting the FIR to the Court. The explanation to Sec.2(d) of the Code quoted above clearly indicates that the Police Officer should come to know or the report of the Police Officer should disclose that, only after investigation the

commission of a non-cognizable offence had come to the knowledge of the Police Officer. Therefore, it goes without saying that at the time of receiving the credible information neither the Police Officer proceeded to investigate the matter under an impression that there may be commission of both cognizable and non-cognizable offence nor it can be said that, after investigation only he came to know about the commission of a non-cognizable offence. In such eventuality, the explanation to Section 2(d) of the Code is not applicable.

56. Then, how this anomaly can be ascertained or analyzed by the Court. The Court has to apply its mind judiciously and meticulously to the report submitted by the police in order to ascertain whether the report discloses any such reasonable belief on the part of the Police Officer who investigated the matter, in

order to accept the said report as a complaint u/s.2 (d) of the Code and to take cognizance u/s.190 (1)(a) or (c) of the Code. No such explanations are available in any of the reports submitted by the police in the above said cases. Therefore, the cognizance taken by the learned Magistrate is hit by Section 155(2) of Cr.P.C; therefore, it cannot be treated as a complaint under Sec.2(d) of the Code. Hence, I answer this point in the 'Negative'.

57. Whether such proceedings can be quashed by invoking provision of section 482 of Cr.P.C.?

58. It is worth to note a decision of the Hon'ble Supreme Court in the case of state of **Haryana and others Vs. Bajanlal and Others reported in AIR 1992 SC 604** -

“The Hon'ble Supreme Court laid down certain principles and guidelines under what

circumstances the High Court and the Hon'ble Supreme Court can exercise the power u/s.482 of Cr.P.C in order to quash the proceedings. Though the Hon'ble Supreme Court has not exhaustively given the guidelines, but at paragraph 108 (2) and (4), they clearly indicate that the Court can quash the proceedings, the relevant guide lines are enumerated below:

Where allegations in the FIR and the other materials if any, accompanying the FIR do not disclose a cognizable offence justifying an investigation by Police Officers u/s.156(1) of the Code except under an order of a Magistrate within the purview of Sec.155(2) of the code.”

Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a Police Officer without an order of a Magistrate as

contemplated u/s.155(2) of the Code.”

59. In Keshav Lal Thakur Vs. State of Bihar, cited supra, the Hon’ble Apex Court has also expressed its opinion that if the illegality is explicit on the face of the records, the proceedings are liable to be quashed.

60. Therefore, there is no legal impediment to exercise power under section 482 of Cr.PC., to quash the proceedings which are illegal, in order to prevent the abuse of process of the Court and to secure the ends of justice.

61. Before recording the conclusion, it is just and necessary to note here that if the provision u/s.2(d) coupled with the explanation is stretched to such an extent in order to accommodate all the reports submitted by the police pertaining to the non-cognizable offences after investigation without there being any

semblance of explanation in the report, the very purpose of the mandate u/s.155(2) of the Code will be frustrated and the said provision virtually becomes redundant. Therefore, it must be made clear by the Police Officer, who file a report pertaining to a non cognizable offence that, at the initial stages, when he came to know about the commission of offence, he was under confusion or he incurred some doubt or he has some reasonable doubt with regard to commission of both cognizable and non-cognizable offence and therefore, he proceeded to investigate the matter without the permission of the Magistrate, but after investigation he found that only non-cognizable offence was committed.

62. In view of the above said discussion and my observation with regard to the legal and factual aspects, it is inevitable for me to hold that when at the initial stages itself the investigation is vitiated by serious

incurable defect, and such irregularity amounts to an illegality, all further proceedings are also equally vitiated and are liable to be quashed. There is no legal impediment for this court to quash such proceedings.

63. As a matter of caution, I feel it is just and necessary to enumerate some guidelines to the learned Magistrates and to the Department of Police. The Judicial Magistrates who are empowered to take cognizance u/s.190 of Cr.PC, they have to strictly adopt the procedure as contemplated under the Cr.PC and also adhere to other relevant provisions under other laws for the time being in force. The following aspects are necessary to be followed by the learned Magistrates.

(1) If a report is submitted by the Police the Magistrate has to meticulously look into the entire police papers to find out whether

the offence is with reference to a cognizable or non-cognizable offences or mixture of both and the report is with reference to a non-cognizable offence only, then the Magistrate has to ascertain whether cognizance can be taken or not, by ascertaining that all the legal requirements are fulfilled under section 190 and 154, and 155 and 2(d) of Criminal procedure code.

(2) If the report of the police is only with reference to a non-cognizable offence, then the Court has to find out whether at the initial stages, the Police Officer has taken the permission of the court or proceeded with the investigation on the guise that some cognizable offence was also committed and

only after investigation he came to know that a non-cognizable offence is committed and therefore, the report can be treated as a complaint u/s.2 (d) of Cr.PC.

(3) If the Magistrate at the initial stages is of the opinion that the report cannot be treated as a complaint u/s.2(d) of Cr.PC, he should not take cognizance of the offence. He should return the charge sheet to the concerned police for following the proper procedure, or he can refer it for further investigation if necessary after according permission under section 155(2) of Cr.P.C without taking cognizance.

(4) If the report is treated as a complaint u/s.2 (d) Cr.P.C, then the

Magistrate has to take cognizance and then to look into whether any further investigation is required. If so, he can refer the matter for further investigation u/s.202 of Cr.P.C and proceed further in accordance with law.

(5) The Magistrate has to apply his judicious mind in order to ascertain, whether the court has got jurisdiction to take cognizance pertaining to a non-cognizable offence in a very meticulous manner, though the courts are over flooded with criminal cases, but the same cannot be an excuse for applying its judicious mind.

64. In the event of court not applying its mind meticulously to the factual and legal aspects of the case,

it would definitely lead to multiplicity and endless litigations.

65. The Police Department also shall take the following in the utmost care while investigating a non cognizable offence:

(1) If the first information to the police is with reference to both cognizable and non cognizable offence then even without taking any permission for investigation under section 155(2) of Cr.PC., the Police can investigate a case but the said factum should be borne out from records or it should be explicitly forthcoming in the Police report (charge sheet) to avoid confusion to the Court.

(2) If the information is only with reference to a non cognizable offence, the Investigation Officer shall take permission of the competent jurisdictional

Magistrate before proceeding to investigate the matter.

(3) The Investigation Officer should also look into the relevant provisions under the general Laws (Cr.PC.) and special laws (like Karnataka Police Act in this case) if any, under which he is investigating a non-cognizable offence, whether he can arrest a person without warrant. If such power of arrest is not a general power, and if such power is given under special circumstances, then he shall take the permission of the competent Jurisdictional Magistrate under section 155(2) of Cr.PC. to investigate a non-cognizable offence.

66. With these observations, I am of the opinion that all the Criminal Petitions deserves to be allowed. Hence, the following:

:ORDER:**1. All the Criminal Petitions are allowed.**

Consequently, the proceedings in the following cases which are called in question in the above respective Criminal Petitions are hereby quashed:

- (1) CC No.365/2010 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (2) CC No.433/2010 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (3) CC No.486/2010 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (4) CC No.491/2011 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (5) CC No.168/2012 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (6) CC No.119/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (7) CC No.638/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (8) CC No.879/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (9) CC No.878/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (10) CC No.932/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (11) CC No.1035/2011 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary

- (12) CC No.74/2014 on the file of I Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (13) CC No.1030/2011 on the file of I Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (14) CC No.502/2012 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (15) CC No.478/2012 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (16) CC No.637/2013 on the file of II Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (17) CC No.348/2011 on the file of I Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (18) CC No.291/2013 on the file of I Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (19) CC No.1161/2013 on the file of I Addl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (20) CC No.1076/2013 on the file of I Addl. Civil Judge & JMFC, Bellary
- (21) CC No.1036/2012 on the file of Prl. Civil Judge & JMFC, Bellary
- (22) CC No.1066/2012 on the file of Prl. Civil Judge & JMFC, Bellary
- (23) CC No.1576/2013 on the file of Prl. Civil Judge & JMFC, Bellary
- (24) CC No.841/2013 on the file of II Addl. Civil Judge & JMFC, Bellary
- (25) CC No.1699/2013 on the file of Prl. Civil Judge (Jr. Dn.) & JMFC, Bellary
- (26) CC No.1067/2012 on the file of Prl. Civil Judge & JMFC, Bellary
- (27) CC No.61/2014 on the file of II Addl. Civil Judge & JMFC, Bellary
- (28) CC No.116/2013 on the file of II Addl. Civil Judge & JMFC, Bellary
- (29) CC No.713/2012 on the file of II Addl. Civil Judge & JMFC, Bellary

- (30) CC No.1014/2011 on the file of Prl. Civil Judge & JMFC, Bellary
- (31) CC No.1352/2012 on the file of the Addl. Civil Judge & JMFC, Court, Hospet
- (32) CC No.1237/2013 on the file of Addl. Civil Judge & JMFC, Court, Hospet
- (33) CC No.900/2012 on the file of Prl. Civil Judge & JMFC Court, Hospet
- (34) CC No.259/2013 on the file of Prl. Senior Civil Judge & JMFC Court, Hospet,
- (35) CC No.809/2011 on the file of Addl. Civil Judge & JMFC Court, Hospet,
- (36) CC No.1080/2013 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (37) CC No.123/2014 on the file of Prl. Civil Judge (Jr. Dn.) & JMFC Court, Hospet,
- (38) CC No.1626/2013 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (39) CC No.796/2012 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (40) CC No.842/2012 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (41) CC No.1505/2013 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (42) CC No.1625/2013 on the file of Prl. Civil Judge & JMFC Court, Hospet,
- (43) CC No.259/2012 on the file of II Addl. Civil Judge & JMFC Court, Bellary,

2. It is made it clear that where the Magistrates during the pendency of these petitions, have already concluded the trial or where the cases are disposed off,

this order does not affect the validity of those orders of the Trial Court.

3. The Commissioner of Police (Training) shall organize seminars/workshops for Police personnel for sensitization in cases under the Karnataka Police Act.

4. Registry is directed to send a copy of this order to the Director General and Inspector General and Commissioner of police, Bangalore, Karnataka State for information and for appropriate expedite action to guide the Investigation Officers in the Department of the State.

Registry to circulate the copy of this judgment to all the Magistrates working in the State for guidance.

Sd/-
JUDGE

PL